



Refund & Cancellation Policy

Section 13 – Restricted Uses

The Customer is prohibited from using the site or its content (a) for any illegal purpose; (b) to solicit others to perform or participate in any unlawful acts; (c) to violate any international, federal, provincial, or state regulations, rules, laws, or local ordinances; (d) to infringe upon or violate our intellectual property rights or the intellectual property rights of others; (e) to harass, abuse, insult, harm, defame, slander, disparage, intimidate, or discriminate based on gender, sexual orientation, religion, ethnicity, race, age, national origin, or disability; (f) to submit false or misleading information; (g) to upload or transmit viruses or any other type of malicious code that will or may be used in any way that will affect the functionality or operation of the Service or any related website, other websites, or the Internet. The Provider reserves the right to terminate the Customer's use of the Service and any related website for any breach of these prohibitions.

Section 14 - Prohibited Trading Practices

14.1. The Customer is prohibited from conducting trades that contravene the stipulations outlined in this section or the FAQ. Any trades that are in violation of these stipulations are strictly forbidden. The Customer must adhere to the rules and guidelines set forth in this section, as well as those established by the FAQ when utilizing the Services

14.1.1. The Customer must not intentionally or unintentionally use trading strategies that exploit errors in the Services, such as inaccuracies in displayed prices or delays in their updates, including but not limited to practices commonly known as Latency Trading

14.1.2. Executing trades using an external or slow data feed or performing gap trading is prohibited for the Customer.

14.1.3. Engaging, either alone or in cooperation with others, in any trades or combinations of trades across connected accounts or accounts held within the platform, if the purpose is to manipulate trading, commonly referred to as "Group Trading," is forbidden. Examples of such manipulation include entering into opposite positions simultaneously.

14.1.4. The use of any software, artificial intelligence, ultra-high speed, highfrequency trading, or mass data entry that could manipulate or abuse the

Provider's systems or services, or provide an unfair advantage, is prohibited for the Customer.

14.1.5. Performing arbitrage (of any kind), including but not limited to triangular arbitrage, statistical arbitrage, latency arbitrage, market-making arbitrage, spatial arbitrage, pairs trading arbitrage, risk arbitrage, convertible arbitrage, volatility arbitrage, dividend arbitrage, tax arbitrage, yield curve arbitrage, or any other form of arbitrage that may exploit pricing differences between different markets or exchanges, is prohibited for the Customer.

14.1.6. Employing strategies that guarantee the execution of limit orders during periods of low liquidity is prohibited for the Customer, as such practices do not reflect actual market conditions and therefore contravene the realistic trading simulation standards maintained by The Provider

14.1.7. Performing trades that are inconsistent with typical forex or any other financial market operations is prohibited for the Customer. They should also avoid any activities that may cause financial or other harm to The Provider, such as over-leveraging, over-exposure, making one-sided bets, grid trading, tick scalping, or account rolling. Engaging in any of these activities may raise valid concerns about intentionally harming The Provider.

14.1.8. Engaging in copy trading, where trades mimic or replicate the trading activities of other traders or entities without prior authorization from The Provider, is prohibited for the Customer.

14.1.9. The Customer, or any third party, is prohibited from participating in or collaborating to have a third party execute trades for the Customer, whether such third party is a private individual or a professional, or to permit access to or trading on their FundedNext Challenge Account by any third party.

14.1.10. Accessing any third-party FundedNext Challenge Account, trading on behalf of any third party, or conducting any account management or similar services where the Customer commits to trade, run, or manage a FundedNext Account on behalf of another user, whether professionally or otherwise, is prohibited for the Customer.

14.1.11. Opening positions with sizes that are noticeably larger than those of the Customer's other trades, whether on this account or another one of theirs, is prohibited.

14.1.12. Opening positions with numbers that are noticeably smaller or larger than those of the Customer's other trades, whether on this account or another one of theirs, is prohibited

14.1.13. Using a high level of margin is prohibited for the Customer.

14.2. Should the Customer engage in any of the prohibited trading practices described in Clause 14.1, The Provider may:

14.2.1. Consider this as a failure to comply with the terms of the relevant Challenge provided by The Provider.

14.2.2. Remove the transactions in violation of the prohibition from the Customer's trading history and/or exclude their results from the profits and/or losses generated by Demo Trading.

14.2.3. Terminate all Services provided to the Customer and subsequently terminate this agreement.

14.3. If any or all of the Prohibited Trading Practices are carried out on one or more FundedNext Challenge Accounts of a Customer or on accounts of different Customers, or by combining trading through FundedNext Challenge Accounts and any FundedNext Accounts, The Provider is entitled to cancel all Services and terminate all relevant contracts in respect of all FundedNext Challenge Accounts of the Customer. The Provider may take any actions set forth in Section 14.2 and this Section 14.3 at its sole discretion.

14.4. If The Provider's Trader accounts are used for or involved in the prohibited trading practices, this may also constitute a violation of the respective terms and conditions for The Provider's Trader third-party accounts and may result in the cancellation of all such user accounts and termination of the respective agreements by the third-party provider.

14.5. If the Customer repeatedly engages in any of the practices described in Article 14.1, and The Provider has previously notified the Customer thereof, The Provider may deny the Customer access to all or part of the Services, including access to the Dashboard and the Trading Platform, without any compensation. In such a case, the Customer shall not be entitled to a refund of the fees paid.

14.6. The Provider shall not bear any responsibility for trading or other investment activities that the Customer performs outside the relationship with The Provider, e.g., by using data or other information from the Customer Portal, the trading platform, or in any other way in connection with the services in real trading on the financial markets, even if the Customer uses the same trading platform for such trading that it uses for demo trading. This shall also apply in particular to any services of third parties which the customer uses via the platform.

Section 15 – Limitation of Liability; Disclaimer of Warranties

The Provider does not promise, represent, or warrant that the Customer's use of the service will be error-free, timely, secure, or uninterrupted. The Provider does not warrant that the results obtained from the use of the service will be accurate or reliable. The Customer acknowledges that The Provider may suspend the service for indefinite periods or cancel the service at any time, with or without notice to the Customer. The Customer expressly agrees that their use of, or inability to use, the service is at their sole risk.

The service and all products and services delivered to the Customer through The Provider's service are provided 'as is' and 'as available' for the Customer's use, without any representation, warranties, or conditions of any kind, either express or implied, including all implied warranties or conditions of merchantability, merchantable quality, fitness for a particular purpose, durability, title, and noninfringement.

In no event will The Provider and its directors, officers, employees, affiliates, agents, contractors, interns, suppliers, service providers, or licensors be liable for any injury, loss, claim, or any direct, indirect, incidental, punitive, special, or consequential damages of any kind, including, without limitation, lost profits, lost revenue, lost savings, loss of data, replacement costs, or any similar damages, whether based in contract, tort (including negligence), strict liability or otherwise, arising from the Customer's use of the service or any products procured using the service, or for any other claim related in any way to the Customer's use of the service or any product, including, but not limited to, any errors or omissions in any content, or any loss or damage of any kind incurred as a result of the use of the service or any content (or product) posted, transmitted, or otherwise made available via the service, even if advised of their possibility.

Because some states or jurisdictions do not allow the exclusion or limitation of liability for consequential or incidental damages, in such states or jurisdictions, The Provider's liability shall be limited to the maximum extent permitted by law.

Section 16 – Indemnification

The Customer agrees to indemnify, defend, and hold harmless The Provider, along with its parent company, subsidiaries, affiliates, partners, officers, directors, agents, contractors, licensors, service providers, subcontractors, suppliers, interns, and employees, from any claims or demands, including reasonable attorneys' fees, made by any third-party due to or arising from the Customer's breach of these Terms of Service, the documents incorporated by reference, or the Customer's violation of any law or the rights of a third-party.

Section 17 – Severability

Should any provision of these Terms of Service be deemed unlawful, void, or unenforceable, such provision will be enforceable to the maximum extent permitted by law. The unenforceable part will be considered severed from these Terms, without affecting the validity and enforceability of the remaining provisions

Section 18 – Termination

Obligations and liabilities arising before the termination date will survive the termination of this agreement for all purposes. These Terms of Service are effective unless and until terminated by either the Customer or the Provider. The Customer may terminate these Terms at any time by notifying the Provider that they no longer wish to use the Services or when they cease using the site.

The Provider may terminate this agreement at any time without notice if, in the Provider's sole judgment, the Customer fails to comply with any term or provision of these Terms. Upon termination, the Customer will remain liable for all amounts due up to and including the termination date, and the Provider may deny the Customer access to the Services.

18.1. Trading Guidelines

The Customer must adhere to the guidelines listed below. Failure to do so shall result in account termination. The Customer must:

18.1.1. Daily Loss Limits: The Customer must not exceed the specified daily loss percentage of the initial account size, inclusive of charges and swaps:

- Evaluation and Express Models: 5%.
- Stellar 1-Step Model: 3%
- Stellar 2-Step Model: 5%

18.1.2. Account Size Maintenance: The account balance must not drop below the specified percentage of the cycle's initial size, considering all positions and associated charges and swaps:

- Evaluation and Express Models: 90%
- Stellar 1-Step Model: 94%
- Stellar 2-Step Model: 90%

18.1.3. Minimum Trading Days Requirement: The Customer must trade for a minimum number of days depending on the model:

- Evaluation Model: 5 days
- Express Model: 10 days
- Stellar Models: 5 days

18.1.4. FundedNext Challenge Express Model: The 'Non-Consistency' designation exempts the Provider from consistency rules, while the 'Consistency' designation mandates adherence to the consistency rule detailed in the FAQ.

18.1.5. Technical Flaw Exploitation: Using system flaws for advantage is prohibited and may lead to immediate suspension.

18.1.6. Hedging: While multiple hedged positions are permissible within a single FundedNext Account, cross-account hedging within FundedNext or with other prop firms is not allowed.

18.1.7. Costs: All costs related to service provision by the Provider are the Provider's responsibility.

18.1.8. Applicable Rules: The terms outlined in the FAQ/Rules govern FundedNext Challenge accounts.

18.1.9. Modification by Add-ons and Special Offers: Add-ons and Special Offers selected during the FundedNext Challenge may modify the trading guidelines in this section. These modifications take precedence over the standard guidelines for their applicable duration.

Violations of the restrictions mentioned in this Article will result in the immediate closure of positions on the trading platform, and the Customer's account may be banned. In such an event, Provider reserves the right to terminate this Contract.

Section 19 – Refund Policy

19.1 Termination Request by Customer: A Customer wishing to terminate their Client Section must send a request to **support@fundednext.com**. Such a request constitutes a desire to end the contractual relationship, resulting in loss of access to all Services, including the Client Section and Trading Platform. The Provider will confirm receipt of the request via email, officially ending the contract. Under these circumstances, the Customer forfeits any right to refunds of fees or other expenditures previously paid.

19.2 Repeated Violations: Should the Customer persist in any prohibited practices after a warning, the Provider may restrict access to all Services without compensation. No refunds will be issued for fees paid in such instances.

19.3 Activation of Services: Upon paying the fee for the FundedNext Challenge program, the Customer will receive login data. By executing the first trade, the Customer acknowledges and agrees that the Provider completes the Services before the withdrawal period ends, waiving the right to contract withdrawal.

19.4 Non-Activation: If the Customer does not activate the FundedNext Challenge within 30 calendar days, access will be suspended. Renewal of access can be requested via email to **support@fundednext.com**, subject to any applicable terms.

19.5 Disputes and Chargebacks: In the event of an unjustifiable fee dispute or chargeback by the Customer, the Provider reserves the right to cease services and deny future services at its discretion.

19.6 Refunds: A refund request must be made within 7 days of registration if no trading activity has occurred. Once trading commences, fees become nonrefundable, with no provision for full or partial refunds